CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
June 23, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:05 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes, Commissioner Rose Tydus and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, City Attorney Joseph S. Geller and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Commissioner Johnson pulled agenda item 16-5; Commissioner Holmes pulled agenda item 16-6.

Commissioner Holmes deferred agenda item 16-1 and 16-2.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes Yes

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – 06/09/2010

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of June 9, 2010.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison for County Commissioner Barbara Jordan (District 1) came forward and mentioned that the commissioner's office met with members of the city regarding the Magnolia North area.

Mr. Gardner advised that he is aware of a meeting on June 29, 2010 with members of the city regarding technical support.

Commissioner Johnson said she will meet with the County Commissioner and Mr. Patterson regarding technical support for Human Resources, Procurement, etc.

10. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

Battalion Chief Danny Kordeso of Miami-Dade Fire Rescue came forward to follow up on a request regarding the Community Response Team (CERT).

Commissioner Johnson thanked Miami-Dade Fire Rescue for a prompt response to a call from her home.

11. PUBLIC PRESENTATION:

1. **Yolanda Cash Jackson**
   Becker & Poliakoff
   re: 2010 Legislative Session Update

City Lobbyist Yolanda Cash Jackson of 3111 Stirling Road, Fort Lauderdale, Florida came forward and briefed the City Commission on the 2010 City of Opa-locka Legislative Session Report. She said there was a huge budget shortfall, some of which was taken care of with stimulus dollars and next year they are looking at a 5.5 Billion deficit.

She further briefed the commission on the 2010 Legislative Report which had been distributed to them.

She continued by saying the FMAP money which is for healthcare has not come down yet and there's a 50/50 chance that it will not. It's an election year and all the cabinet members are up for office so it's very political.

The League of Cities, Association of Counties and others is already looking at issues such as TABOR.

She further mentioned that they were going to inform and support the legislatures in South Florida, and it is a challenge because there will be 15 new Dade delegation members.

In addition to TABOR there is amendment 4. That means any adjustments to the comprehensive plan will have to go before the voters and that's on the ballot, it needs to pass by 60 percent.

She also said there were about 2,600 amendments that were filed and only 300 passed. A lot of attempts by local government to raise revenues did not pass. One of the main issues in terms of raising revenues was the Red Light Camera Bill which did pass.

Another bill that affected municipalities was Senate Bill 1752. Every year there's a bill that's one of the last to be passed were there's stuff stuck in it. One of the things that were stuck in Bill 1752 was a two year extension of the permitting process. In addition there were a number of incentive programs that she outlined for the commission.

There was not much progressive legislation dealing with foreclosure.

Another issue that affects the City of Opa-locka is the Seminole Gaming Compact. That bill was passed and some municipalities surrounding the Seminole Gaming did get incentives to deal with the direct impact. The other issue is that pari-mutuels gaming facilities did get a tax cut down to 35 percent when it was 50 percent.

She further mentioned that legislation was passed pertaining to Sovereign Immunity and this is very important for municipalities. The statute imposes a $100,000.00 limit per person and a $200,000.00 limit per incident on the collectability of any tort judgment based on the government's liability, now it has been doubled to $400,000.00.

One of the things that the City Commission and Staff did was to start looking at alternative funding sources and establish a good relationship with South Florida Water

Management District, and spoke with DEP in hopes of getting any left over stimulus dollars that were not used.

Vice Mayor Taylor asked, is there anything pertaining to education?

Ms. Cash-Jackson said there was legislation that increased the amount available for grants and there was a big movement on behalf of charter schools, not successful but we can imagine that it will come back to make sure they have some of the same protections as public schools. In addition, there was a push on virtual schools to get them in line with public schools.

She further mentioned that the city has very good representation in Representative Braynon and Senator Wilson.

Mayor Kelley thanked Yolanda Cash-Jackson for her hard work.

He said he did not hear anything mentioned about the tax credit that did not pass. He asked the city manager to look into that because that would be possible opportunities for economic development.

Commissioner Johnson said she would like to receive any alerts regarding amendments 5 and 6 because that will impact the City of Opa-locka. Also the city will need to have Town Hall Meetings regarding those amendments.

2. Sylvia Daughtrey
Youth Co-op
re: South Florida Workforce Summer Youth Employment Program

Radea Johnson of 780 Fisherman Street, Opa-locka, Florida, appeared before the City Commission on behalf of Sylvia Daughtrey. She informed them that they spent two work weeks and two Saturdays in the month of April assisting 112 Opa-locka youth with online registration for the South Florida Workforce Summer Jobs Lottery. She thanked the Human Resources staff for their assistance as well. 92 youth from the City of Miami Gardens and the surrounding areas also came to Opa-locka to register and they could not refuse them.

She further mentioned over 14,000 youth in Miami-Dade and Monroe County applied online and of that amount, youth co-op received 1,800 which were randomly selected.

She stated that 292 City of Opa-locka youth were identified and attempts were made to contact them to begin the eligibility process. There is a total of 50 youth from the City of Opa-locka and Miami Gardens who are currently attending the work readiness training during this week, 28 of the 50 are Opa-locka residents.

There is a small amount of Opa-locka residents because some youth may have provided disconnected telephone numbers, did not show up to eligibility appointments, or inaccurate information on their application. 20 youth will start working on Monday with various departments within the city.

Mayor Kelley thanked Ms. Johnson for the information.

The Mayor stated that he is sad to hear that out of 292 youth that applied, only 28 are Opa-locka residents.

Mayor Kelley asked, is there a process in place that gives the reason why the youth did not make the cut?

Ms. Johnson said yes, she can work with the staff at Northside to find out the status of each youth.

Commissioner Johnson said she know it was a lot of hard work and she assisted them a few times to identify zip codes to make sure they were within city boundaries.

11a. CITIZENS' FORUM:

1. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and said he appeared before the commission of May 12, 2010 with concerns to a payment for the Community Garden.

Mr. Burke asked, who is the city representing Milagros Nursery or the citizens of the City of Opa-locka?

On May 12, 2010 I asked that the commission wait and look at the bill, said Mr. Burke.

He further stated that staff said Milagros was the lowest bidder, after reading the Miami Herald he saw that Milagros was the highest bidder. He also said that he was troubled by the comment Mr. Mesa made in the newspaper article.

Terence Pinder of 941 Ali-Baba Avenue, Opa-locka, Florida, appeared before the City Commission to address his concerns regarding the water bill, rates, process, and future relief.

He mentioned that the city service other surrounding areas for water and those water rates should increase. He support Commissioner Holmes with working with the Finance Department to fluctuate gallons and usage, but when Newall Daughtrey was employed by the city he mentioned that Miami-Dade County owes the city millions of gallons from the airport meter. The residents deserve better and the finance department has to think outside the box. You can no longer do the same thing and expect the same result. The citizens should pay one low rate, no matter how many gallons are being used. The other surrounding customers should subsidize that cost.

Mr. Pinder said the city should have enough reserve so the citizens should be paying a water bill once every three months.

Mayor Kelley said the city had a town hall meeting dealing with thinking outside the box for creative financing which the finance department is working on and the citizens will hear more about it.

We have reserves in the bank but of course we want to keep $500,000.00 at all times, said Mayor Kelley.

2. Pastor Celeste Fitzpatrick of 2523 Opa-locka Boulevard, Apt. 241, Opa-locka, Florida appeared before the City Commission and suggested that the city have suggestion boxes outside the Police Department and Town Center One.

She further mentioned that Robert Knapp should be a honorary commissioner, the tri-rail station should be named in honor of our mayor, and a street should be named after Janet Reno.

She continued by suggesting that pastors are invited to the commission meeting and town hall meetings.

Commissioner Johnson said she met the Human Resources Director along with the City Manager in regards to a Suggestion Box.

Commissioner Tydus said Mr. Burke made reference to a newspaper article and that he had concerns regarding that article and so does she.

She has questions about the accuratecy of that article, that same article refer to Mr. Burke as a former city commissioner.

NOTE: *As per the request of Commissioner Tydus, this portion of the minutes is transcribed verbatim. Also a copy of the legal opinion from the State of Florida Commission on Ethics is attached as part of these minutes.*

Commissioner Tydus: It's really a sad day in the life of any community when residents are quoted in the newspaper casting ill willed perceptions and allegations against good people and good projects. Projects that were designed to benefit the entire city. Its even sadder when newspaper reporters join forces with that same negativity and publish inaccurate bias and scathing news against good people and good projects such as the community butterfly garden that's located at 1100 Sharazad Boulevard that was once a eyesore vacant plot of land that's now being transformed into a beautiful focal point and landmark on one of the gateways into the city. A project that I sponsored to foster beautification, pride, and a positive image for the common good of all who work and play and live and visit in the City of Opa-locka. It was a project that was embraced by the community relations activities recreation advisory board, the administration, and the business community. It was a project that sprung nearby residents to spruce up there yards and dwelling places. I'm not only sadden by the efforts of the news media and misleading comments of Alvin Burke and Steve Barrett quoted in the newspaper concerning me. I'm saddened because I understand the severe and I do mean severe divine consequences of these types of actions. I'm going to take the opportunity to briefly address that newspaper article by the Miami Herald reporter Helen Berggren and I had

hoped that she would be here today but this article was posted on Monday, June 7, 2010 and to anyone who really didn't know me and really didn't have the facts they might conclude that some of the plants that were purchased for the community butterfly garden were planted in my yard, that were purchased by the city were planted in my yard. They might conclude that it was unlawful for me to purchase plants from Milagros Farm & Nursery the company that landscaped the garden. They might conclude that it was unlawful for me to have voted on the resolution providing payment to Milagros Farm & Nursery. None of these conclusions are accurate, none of them are true, and none of these allegations are correct. Now let me refer now to a written legal opinion that I requested of Christopher Anderson II who is the Chief Assistant General Counsel, The State of Florida Commission on Ethics in Tallahassee concerning these matters. I'm directing the clerk at this time also to attach this opinion to the minutes of this meeting with the phrase that states this opinion is apart is made apart of these minutes and attached hereto. Now Ms. Berggren in her newspaper article states and I quote *In an interview at the dais before leaving the meeting Tydus said quote someone in downtown in Ethics said it was fine to use the same landscaper, she goes on to say that Robert Myers, Director of Miami-Dade Commission on Ethics and Public Trust said that no Opa-locka official had asked the Commission to render an opinion about the Opa-locka garden* that's correct I never told her that I spoke to anyone at the Miami-Dade Commission on Ethics, I told her I spoke with one of the attorney's at the State of Florida Commission on Ethics in Tallahassee. My inquire to the State of Florida Commission on Ethics was is as follows: That the City of Opa-locka administration selected Milagros Farm & Nursery to provide plants and landscaping for the newly developed community garden. The City Commission did not participate in that procurement process at all. The plants were delivered and installed, a dedication program followed the garden, followed the completion of the installation days following and a, the garden was officially opened. Days following the official opening I purchased plants from Milagros Farm & Nursery to landscape my front lawn. I paid with a personal check full standard price that any citizen, resident, or customer for the merchandise. Secondly, weeks later a resolution was considered by the City Commission for payment of the services that had been rendered, that had been rendered by Milagros Farm & Nursery. I participated in that voting process, my request for written legal opinion was whether or not any of my actions were illegal or improper. The response is as follows: Of which will be attached and made apart of these minutes. Dear Commissioner Tydus Phillip Claypool, Executive Director and General Counsel of the Florida Commission on Ethics has requested that I respond to your above referenced inquiry. The Commission on Ethics has jurisdiction on matters relating to primarily Part III, Chapter 112 Florida Statutes. Under part III, Chapter 112 Statutes which can be addressed to some extent regarding your inquiry are sections 112.33 (3), 112.33 (7), 112.3148, and 112.3143 (3) (a), Florida Statutes. The facts presented in your inquiry do not implicate section 112.313 (3) because they do not indicate that the city purchased, rented, or leased anything from you or from a business connected to you, your spouse, or your child as set forth in the statute. Also, the facts do not indicate that you or any business of yours rented, leased, or sold anything to the city. Regarding section 112.313 (7), assuming for the sake of argument, that you met the elements necessary for a prima facie violation of the statute, it appears that the exemption of section 112.313 (12) (i) Florida Statutes which shields you from an actual violation. The exemption provides, relative to possible conflicts rooted in a business's doing of business with a public entity that no person shall be held in violation of subsection 7 if the public officer purchases in

a private capacity goods or services at a price and upon terms available to similarly situated member of the general public from a business entity which is doing business with his or her agency. Concerning 1 section 112.3148 it does not appear that the plants/services from the nursery were a gift to you. Rather you state that you paid the nursery. Section 112.312 (12) (a) Florida Statues defines gift to mean that for which equal or greater consideration is not given within 90 days. As to section 112.3143 (3) (a) it does not appear that you will be presented with a voting conflict of interest based on your purchase of plants from the nursery should any votes/measures of the City Commission regarding the nursery come up. Such a purchase would not have made the nursery a principal by whom you were retained and such a purchase would not have created any other relationship between you and the nursery as enumerated in section 112.3143 (3) (a). In sum as set forth above it does not appear that the situation presented in your inquiry is conflicting for you under the ethics statues cities above. If I have misunderstood any facts of your inquiry, if material facts other that those listed in your inquiry were not presented and need to be supplemented or if you have any questions please telephone me however, I expect to be out of town Sincerely Christopher Anderson III, Chief Assistant General Counsel for the State of Florida Commission on Ethics. To my colleagues I hope these opinions will help you better understand your boundaries concerning gifts, purchases, and conflict of interest voting matters but most of all, most of all I sincerely hope that we all learn to live up to that which we coin ourselves as being the great City of Opa-locka and that will only happen when we begin to pattern ourselves after the great God we pray to during the invocation who commands us to love our neighbors as ourselves.

This concludes the verbatim portion of these minutes.

Commissioner Holmes asked to comment.

Mayor Kelley said he don't want to hear any comments on that.

Commissioner Holmes said he would like to comment on Pastor Celeste Fitzpatrick concerns regarding a suggestion box.

He further said a suggestion box is at Historic City Hall and he has been trying to have it moved to Town Center One for a year or two but its still there. Maybe staff can have the suggestion box transferred.

12. ACTION ITEMS (items from consent agenda pull list):

16-5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING A CHANGE ORDER FOR THE CONSTRUCTION CONTRACT FOR SHERBONDY VILLAGE COMMUNITY CENTER, CONFIRMING THAT CBHC, LLC, HAS AGREED TO UNDERTAKE RESPONSIBILITY FOR THE CONSTRUCTION PHASE DESIGN SERVICES FOR THE SHERBONDY VILLAGE COMMUNITY CENTER PROJECT, INCLUDING ALL RESPONSIBILITY FOR SUBMITTAL REVIEW, RFI RESPONSES, COORDINATION OF REVISIONS TO THE DESIGN DRAWINGS, INCORPORATION OF CHANGES INTO THE DESIGN DRAWINGS AND FINAL

REVISIONS AND AS BUILT DRAWINGS, WITH THE CITY CONTRACT ALLOWANCE OF $75,000.00 REALLOCATED TO PAY FOR THE SERVICES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson said when this resolution came there were conversations regarding change orders and she made the assumption from the presentation that no change orders were not to be expected. I have since learned that change orders are a normal process of building, said Commissioner Johnson.

Commissioner Johnson asked, where will the money come from?

She said if any money is to be spent an account number has to be provided and it doesn't appear that the finance department is providing that information.

Manager Patterson said he does not know the account number, but the money is part of the agreement that was entered into with the developer. There are errors and omissions in the amount of $75,000.00 in the original amount that the city accepted for this project.

Commissioner Johnson said in the future she would like to have an account number because all money coming in or going out must be accounted for.

Commissioner Holmes said this is nothing new, the $75,000.00 that is in the above mentioned resolution is the same money that came up during the time the commission voted on the resolution regarding the Sherbondy Village Center. It was the $75,000.00 miscellaneous that was in the documents. The company stated that they will be willing to take over the architect work for $75,000.00. The attorney said people from downtown said it needs to go out for a RFQ to get other bids and it did. One bid came back for $150,000.00, another company did not want to do the work, and the third company did not respond at all.

Commissioner Holmes said to Mayor Kelley with all due respect it is not right when you allow one colleague to speak 15-20 minutes then when you felt as if I was going to respond to her comments you were ready to shut me up. He reiterated that's not right, if you are going to be the chairman of this commission then let's be fair.

Mayor Kelley said you just made your comments Commissioner Holmes and I allowed Commissioner Tydus to make her comments because they were reference to something a citizen brought up. Any time a citizen comment to any of the commissioners he allows them time to respond. He just didn't want any further dialogue to try and move the meeting.

Mayor Kelley said in the future, if there are issues that come up dealing with dollars he would like to see the account number listed.

He further mentioned that the process has been going slow regarding the Sherbondy Village Center and he hope this is the last slow stop in this process because he does not want to loose any funding.

Vice Mayor Taylor said the builder said there will be no stopping in the process and she does not know why the process stopped for $75,000.00 when the project is $3.7 Million Dollars.

Mayor Kelley said the purpose of the resolution is because the city is asking this company to take over a part of the project that was previously with someone else, and the city had to give them the authorization to do that.

Manager Patterson said that is correct.

There being no further discussion, the motion passed by 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

16-6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE ISSUANCE OF A REQUEST FOR PROPOSALS (RFP) FOR AUDITING SERVICES FOR THE FISCAL YEAR 2010-2011, WITH OPTION TO RENEW FOR A ONE-YEAR TERM; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes asked, is it time for the current auditor to renew his contract?

Manager Patterson replied, yes.

He mentioned that there is an error on the resolution. The year should read 2009-2010.

We are in the 2009-2010 audit now, said Commissioner Holmes.

Vice Mayor Taylor said the body of the resolution reads that the contract expires September 30, 2010. It goes on to say that you are asking for a RFP for fiscal year 2010-2011. Is that correct?

Dr. Ezekiel Orji, Finance Director mentioned that the last contract expired over the fiscal year 2009 which ended September 30TH. This request to go out for another contract starts October 2009 through September 2010.

Roderick Harvey of 3816 Hollywood Boulevard, Ste. 203, Hollywood, FL 33021 said the way his contract was written, the last year he can perform was September 30, 2009 which he has done.

Commissioner Holmes asked, have you been working all this time without a contract?

Mr. Harvey replied, no. He finished the work and issued in March for the 2009 audit.

Commissioner Holmes asked, you haven't done any work since your contract ended?

Mr. Harvey replied, no.

Commissioner Holmes said we are half way in the 2010 year, September will be another fiscal year.

Mr. Harvey said the next audit will be the September 30, 2010 audit.

Commissioner Holmes asked, what you want the commission to do is pass the September 2009 so you can bring it up to October 2010?

Manager Patterson replied, yes.

Mayor Kelley asked, have we done the extension yet?

Manager Patterson replied, yes.

Commissioner Johnson said her organization which she is not a voting member just hired Mr. Harvey as the auditor. She asked, do she need to recuse herself?

Attorney Geller replied, no. For the record since you have a non profit organization and you are not a voting member it is not a conflict.

Commissioner Holmes asked, can Mr. Harvey contract be extended for 2009-2010 since 2010 is almost over?

Attorney Geller said it can be done if an extension is provided for in the original contract but it is his understanding that the original provided for an extension and that extension has already been granted.

Commissioner Holmes said for the record staff needs to stay on top of their jobs and keep the commission informed when contracts are up for renewal.

Mayor Kelley asked, why is this just being presented to the commission when staff knew Mr. Harvey already exercised his opinions and finished the audit in March when he issued the report to the commission. It would appear to me that an RFP should have been done in April. He reiterated his concerns as to why staff waited so long before requesting to go out for an RFP.

Manager Patterson said staff was under the impression that the contract for auditing services had not yet expired and they later found out that it had expired.

Commissioner Johnson said she would like to amend the resolution because the auditor works for the commission and not staff. She would like to recommend an amendment so the commission makes the selection for auditor. She is aware that the commission makes the approval, but she is going back on history.

Attorney Geller said that is appropriate.

He further mentioned that the above referenced resolution would require two amendments.

Attorney Geller provided the language for the amendments to the resolution as follows: The first amendment changes the title from 2010-2011 to 2009-2010. That same change would be made in the first paragraph of the body of the resolution to read the professional agreement with the City's current auditors of record expired on September 30, 2009; the third whereas clause will change 2010-2011 to 2009-2010. Section 2 will be changed from 2010-2011 to 2009-2010 and additional language will be included in section 2 to read The selection shall be made by the City Commission.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the above mentioned resolution.

Mayor Kelley said he was always under the impression that the commission makes the selection. Is there a difference process?

Attorney Geller said that is what was done in the past; however Commissioner Johnson wants it to be absolutely clear so there will be no confusion and it is appropriate.

Mayor Kelley asked Commissioner Johnson if she would like all the applications to go to the commission.

Commissioner Johnson said she would the commission to convene together and make the decision.

Vice Mayor Taylor said the fiscal year is from October 1 to September 30. When is the audit done?

Manager Patterson said the start date of the audit depends on the auditor and their capability of performing the audit.

Vice Mayor Taylor asked, does the auditor work within the fiscal year that we operate in?

Manager Patterson replied, no. The audit is for the previous year.

There being no further discussion on the amendments, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

13. NEW ITEMS:

14. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

15. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A TWO-YEAR INTERLOCAL AGREEMENT WITH THE MIAMI-DADE COUNTY STORMWATER UTILITY FOR CONTRACT SERVICES PERTAINING TO STORMWATER MANAGEMENT AND MAINTENANCE OF SHARED STORMWATER DRAINAGE SYSTEMS IN AN AMOUNT NOT TO EXCEED THREE HUNDRED FORTY-SIX THOUSAND THREE HUNDRED TWENTY-TWO DOLLARS AND NO CENTS ($346,322.00) ANNUALLY, PAYABLE FROM ACCOUNT 43-538340; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

Vice Mayor Taylor said the agreement went from five years to two years. Were any services cut?

Manager Patterson replied, no.

Commissioner Johnson thanked the City Manager for due diligence. She further thanked her colleagues for supporting her in her decision to defer this item so the City Manger can re-negotiate the agreement.

Mayor Kelley said one of the reasons he was in support of the deferral is because two years from now maybe it can be done in house at a lower cost.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE CITY CODE BY AMENDING CHAPTER 15, OFFENSES-MISCELLANEOUS, ARTICLE X, SIGNALIZED INTERSECTION SAFETY; PROVIDING FOR RECORDED IMAGE MONITORING AND ENFORCEMENT OF RED LIGHT VIOLATIONS CONSISTENT WITH GENERAL LAW; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.A.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

Attorney Geller said for the record the law change will go into effect as of July 1ST. He has been in contact with the counsel for the ATS organization and when this ordinance comes back for second reading there will be a provision that provides for us to ratify the program and have it retroactively ratified back to July 1ST.

Commissioner Johnson said on Veterans Way she see the camera flashing, and is she to understand that no one is receiving a ticket?

Manager Patterson said not at this time.

Attorney Geller said they are receiving warnings.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE CITY'S LAND DEVELOPMENT REGULATION CODE TO PROVIDE FOR A NEW SECTION 5.14, ENTITLED "SCHOOLS"; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AND EFFECTIVE DATE (first reading held on May 26, 2010). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING SECTION VI OF THE CITY'S COMPREHENSIVE MASTER PLAN TO ALLOW FOR PUBLIC SCHOOLS/CHARTER SCHOOLS IN SPECIFIC LAND USE CATEGORIES AND TO ALLOW AN INCREASE IN DENSITY FOR AFFORTABLE HOUSING PROJECTS IN MODERATE DENSITY CATEGORIES IN ACCORDANCE WITH THE 2010 EVALUATION AND APPRAISAL REPORT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE (first reading held on June 9, 2010). *Sponsored by C.A.*

The above ordinance was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing.

Patrick Range of 5727 NW 17TH Avenue, Miami, FL appeared before the City Commission on behalf of Biscayne Housing Group as well as the Carrie Meek Foundation and Mrs. Georgia Ayers. They are both present along with representatives from the Biscayne Housing Group.

He further stated that he is before the commission asking for approval of the two ordinances before them as well as the site plan to permit the Georgia Ayers Apartments

development which is a 72 unit workforce housing development to be located at 13280 Port Said Road, Opa-locka, FL. This project has been in the planning stage for three years and he has had the opportunity to speak with city officials, staff, residents, and business owners about the project and the benefits it would bring to this great city.

They have been able to capture a number of public dollars to bring to the city to assist with the development process. They received $7.5 Million Dollars in general obligation bond dollars courtesy of Commissioner Barbara Jordan. They have also received approximately $5 Million Dollars in tax credits through the State of Florida.

There are a number of amenities that will come with this project. They will have a community room, library, community lab, exercise room, and a police sub station which is an added benefit.

The police sub station will be near the community room and will be constructed by the development team at no cost to the City of Opa-locka. This sub station could serve as a outpost and there will be on site security as well so the police will not be necessary for securing the facility. This facility will be gated with a card key access.

This is an opportunity to put another property on the tax rolls for the city. The property is currently a vacant lot.

Mr. Range mentioned that there are a number of members of the community that came out to support the project.

Attorney Geller made a clarification for the record. The second reading ordinance is to adopt changes to the city's comprehensive master plan. While Mr. Range is presenting the site plan to the commission it is not on the agenda for the commission tonight. He anticipates that it will be before the commission at the next commission meeting.

Vice Mayor Taylor thanked Mr. Range for the presentation and also welcomed Congresswoman Meek and Mrs. Ayars for their attendance.

She mentioned that she had reservations about the ordinance but it was not on the project. She thinks the project is good and valuable. She didn't want the commission to be out of control when it comes to increasing density, but she has a better understanding now.

Commissioner Johnson said she support any economic engine, however she is very concerned about how jobs opportunities this project can bring to residents that lives in the boundaries of Opa-locka.

She asked, is there a plan to make sure that Opa-locka residents are considered for employment?

Mr. Range said they will consider it and they are looking to the community to participate, both in terms of employment and utilizing the housing. They will make every effort and have reached out to some businesses to assist them in development.

Commissioner Holmes said he support Congresswoman Meek and Georgia Ayers that is overseeing this project, but he don't want another place for people to hang out and sell drugs.

He re-iterated that he wants them to do what's best for this community.

Commissioner Tydus said she had concerns as to the density because it's been her personal experience that density breeds contempt.

She said a traffic study was supposed to be done in that area. Has that study been completed yet?

Gerald Lee mentioned that we are dealing with the ordinance pertaining to the density and location of schools in the area. The site plan items has not came before the commission yet. When those items come before the commission they will address traffic study and other site plan related opportunities at that time.

Commissioner Tydus said traffic and density goes to together. She agreed with Commissioner Holmes, she has a lot of respect for the two ladies over seeing this project and she will hold them to the integrity of the project.

She continued by saying she is still concerned about the density but she will let her respect over ride it and pray that this project will benefit the residents in the City of Opa-locka.

Mayor Kelley said he's been in the forefront of this project from the beginning because of how they went out and got outside resources to bring into the city. He was happy to hear about the police sub station because that is one of the city's more challenged areas.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

C. RESOLUTION/PUBLIC HEARING:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING, SETTING FORTH AND SUBMITTING TO THE ELECTORATE A PROPOSED CHARTER AMENDMENT, AMENDING THE CHARTER OF THE CITY OF OPA-LOCKA, FLORIDA TO AMEND ARTICLE X, SUBSECTION 139(e), CALLING AND PROVIDING FOR A REFERENDUM AT THE GENERAL ELECTION TO BE HELD ON NOVEMBER 2, 2010, FOR THE PURPOSE OF SUBMITTING SAID CHARTER AMENDMENT TO THE ELECTORATE AT SAID REFERENDUM; FURTHER DIRECTING THE CITY CLERK TO CAUSE A CERTIFIED COPY OF THE HEREIN RESOLUTION TO BE

DELIVERED TO THE SUPERVISOR OF ELECTIONS OF MIAMI-DADE COUNTY, FLORIDA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.C.*

The above resolution was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Holmes asked, why is this going to November?

Clerk Irby said the cost is less expensive. If you have four or more referendums on a ballot it costs a lot of money. We have sufficient time because this does not go into effect until 2012.

She further mentioned that there are going to be changes in the ballot question. After the resolution was prepared she read the Florida Statutes and section 101.161 regarding referendum ballots and it says the substance of the amendment or other public measure shall be explanatory statement not exceeding 75 words in length. After she counted the ballot question it was more than 75 words. She will meet with the City Attorney and condense some of the language but it will be easy for everyone to understand.

Mayor Kelley asked, does that impact what the commission is voting on?

Attorney Geller replied, no.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	No

16. ADMINISTRATION:

CONSENT AGENDA:

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE CONTRACT NEGOTIATED BY THE CITY MANAGER WITH CARRAS COMMUNITY INVESTMENT, INC., FOR THE INITIATION AND PREPARATION OF A REDEVELOPMENT PLAN; APPROVING CONSULTING SERVICES TO DEVELOP A MASTER PLAN FOR THE GEOGRAPHIC LOCATIONS WITHIN THE CITY BOUNDARIES WHERE

COMMUNITY DEVELOPMENT WILL TAKE PLACE; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA–LOCKA, FLORIDA, TO CREATE AND ADOPT A HOMEOWNER'S BILL OF RIGHTS FOR THE CITY OF OPA-LOCKA HOMEOWNERS; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO SUBMIT AN APPLICATION FOR THE EDWARD BYRNE MEMORIAL JUSTICE ASSISTANCE GRANT (JAG) PROGRAM; LOCAL SOLICITATION FOR THE AMOUNT OF FORTY-FIVE THOUSAND ONE HUNDRED AND TWELVE DOLLARS ($45,112.00); PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Patterson provided the Commission with a report on reducing the city's stormwater agreement from five years to 2 years. He mentioned that he is happy to report that the police department just passed an audit with the State of Florida. He further thanked the staff at the police department for working very diligent.

With regards to the improved lightning in the city he distributed to the commission in a report, Manager Patterson said he has not received any directives from the commission as to whether or not he should go ahead with the upgrade process at the cost of $13,000.00 more a year that we would have to pay.

He requested that the Commission provide him with a date for the Budget Workshop.

He further mentioned as he look at the budget aside from the reduction in revenues of $1.14 Million Dollars. If we were to try to honor all requests from the departments there will be a short fall of $3 Million Dollars. He does not suggest that we increase the millage rate.

He previously reported that staff was working on a ramp at Ingram Park. Also, it has been brought to his attention that concerns him. He found out that there are manatees in that lake, and if that is true, then jet skis does not belong in that lake at all.

Segal Park is complete and the Ribbon Cutting Ceremony will be held on June 24, 2010 and he encourages everyone to come out and celebrate this event.

He further mentioned that he appointed Starex Smith as the Parks & Recreation Director.

Mayor Kelley said he was wondering when he was going to see a resolution since he initiated additional lighting in the city.

Manager Patterson said they will prepare a resolution.

Mayor Kelley directed the City Manager to prepare a resolution for additional lighting in the city. He would like to increase the lighting in certain areas. When staff took a tour with FPL some areas had better capability for high resistance against bullets.

The City Commission agreed to schedule the budget workshop on Tuesday, July 6, 2010 at 5:00 p.m.

Manager Patterson informed the commission that the police department is hosting a Community Gun Buy Back Initiative and an Unwanted Medication Disposal on Saturday, June 26, 2010 @ 10:00 a.m. at St. Andrews Missionary Baptist Church.

Mayor Kelley said he is looking at the flyers for both events and don't see the CET logo.

Chief Cheryl Cason said when they reapplied for the Weed and Seed grant CET was changed to the COBS (Community Operations Bureau) Department, that change was made by Mr. Finnie.

Mayor Kelley directed the City Manager to change the name back to the CET program. The CET program was designed to have community involvement.

Commissioner Johnson said a resolution was passed for the CET program.

Chief Cason thanked everyone for their support during her time of bereavement.

Mayor Kelley congratulated the City of Opa-locka Police Department for the FDLE report.

Commissioner Johnson thanked the Police Department for an outstanding presentation at the regional law enforcement meeting last week.

Vice Mayor Taylor agreed with Commissioner Johnson. She was very impressed with our city's Police Department at the Regional Law Enforcement Collaboration on Violence.

Commissioner Holmes said the light pole located at 2880 NW 132ND Terrace is not working and citizens in that area have complained that it is very dark.

He further mentioned that he received a lot of complaints regarding the condition of the roads on Ali-Baba Avenue between NW 22ND Avenue and NW 27TH Avenue.

When will the road construction take place on Ali-Baba Avenue?

Manager Patterson said that project went out several times and they have shortened the scope of services.

Daniel Abia, Public Works Director informed the commission that they have selected a contractor.

Commissioner Holmes instructed staff to get the process together because this project has been going on for too long.

He continued by directing the City Attorney to prepare a resolution for an Amnesty Program to give citizens a relief on violations.

He further mentioned that he has a copy of a violation a gentleman received in the amount of $65,000.00 and a water bill in the amount of $50,000.00 from the prior owners that staff did not collect. He is willing to pay the water bill in the amount of $50,000.00 but he asked if the city can assist him with the code enforcement liens.

Commissioner Holmes mentioned that the City Clerk checked with the City of Hollywood and was informed that they do have an ordinance that controls the time of the whistle blowing.

He directed the City Attorney to prepare a resolution that candidates campaigning in the City of Opa-locka has a certain amount of days to remove all campaign signs, if not then they will be fined.

Commissioner Holmes said that Mrs. Freeman Collins owns a lot on Ali-Baba Avenue East of NW 22ND Avenue and she is having problems selling the property because the city has pipes beneath the land.

He further directed staff to look into purchasing the land to build a basketball court in that area for the kids.

He was informed that the City of Miramar Code Enforcement and Police Departments has a communication system when the Code Enforcement officers run into a problem they have radios to call into the police station and an officer is dispatched to the scene.

Also, he met with staff today to try and give residents another water rate relief.

Further he directed staff to have the chart prepared by the next commission meeting so his colleagues will have sufficient time to voice their concerns.

He mentioned that he would like to meet with the Chief and Deputy Chief because he has additional complaints regarding the police officers treating people bad.

Commissioner Johnson said a resolution was passed regarding the senior discount drugs and she hasn't seen nothing take place as of yet.

She further mentioned that she would like the City Manager to look into purchasing vehicles for the Public Works Department because some of those automobiles are deplorable.

She said there are manatees in the lake at Ingram Park and she has called Jacksonville several times to come out, and on Sundays they try to lift them out.

She has not received a report regarding the grant writing, the commission should have an idea as to how much money has been awarded along with the number of grants written.

Commissioner Johnson said she asked at the last commission meeting that staff get with the City of Miami Gardens to see if they will be willing to let the city utilize their street sweeper.

She further said she saw a street sweeper a few months ago but it needs to go on 135TH Street and sweep the entire city.

What is the status on the city's street sweeper?

Manager Patterson said it is not working at this time and the equipment is very high maintenance.

Commissioner Johnson said during the eight years she has served on the commission the street sweeper has been down. There are companies that you can out source to, maybe that is something that can be outsourced.

She further mentioned that nothing has been done on State Road 9 and she would like a suspense date as to what is the plan to have the appearance of State Road 9 better?

She directed the City Manager to prepare a plan of action on distributing hurricane information to the public.

Manager Patterson said he met with the Faithbased Members and the churches will be involved in getting the information out to their members. He will be taking every opportunity possible to make sure the information is distributed.

Commissioner Holmes said staff has not presented anything to the commission to purchase the five automobiles for the police department.

Vice Mayor Taylor said she agrees with Commissioner Johnson and would like to see a grants report.

She further said she would like to see the Nile gardens area sprayed for mosquitoes.

She directed the City Manager to look into purchasing cars and a vehicle lift for public works as well as cars for the police department.

Vice Mayor Taylor said she is concerned about the water rate reduction, some of the residents are not satisfied.

She would like staff to look into doing a feasibility study on the water rate reduction and residents receiving a water bill every three months to see how it would work.

She asked for the status of the roofing project?

Manager Patterson said everything has been complete except for the application.

Vice Mayor Taylor asked is there a process when someone has a complaint about substandard living?

Manager Patterson said that should go through the code enforcement housing inspector.

Vice Mayor Taylor said there are several entry ways into our city that needs an upgrade. She would like to see a plan of facade, the first phase should be from 135TH Street State Road 9, and the second phase should be from Ali-Baba Avenue/Veterans Way to 151ST Street.

She is concerned about Villa Francine and would like to see a plan of action.

Manager Patterson said staff met with the Lieutenant from the US Core of Engineers and they have agreed to demolish the unfinished structures. The hold harmless provision has been signed and sent back to them this week.

Commissioner Tydus said she is still handicap with her ability to garner funding sources for the road roundabouts for traffic control safety.

Also, she need a detailed report/study including a traffic study of having traffic control safety done from 27TH Avenue to Perviz Avenue, which will be Sharar, Jann, and Dunad.

Commissioner Tydus asked, how many roundabouts will be needed and what corners will they be on?

Mayor Kelley said he has the same concerns as Commissioner Holmes regarding police treatments of citizens.

He further mentioned that he saw the temporary job program on the city's website and if there are openings he would like staff to do their best in hiring city residents.

Mayor Kelley said he has not seen the picture along with the plan for all of the projects that is in the pipeline. He asked for that information to be available on the fourth floor so citizens will know what type of infrastructure projects that's taking place in our city.

At the last commission meeting an agreement was passed with the Opa-locka CDC and he hope they are working with the Magnolia North area.

Also, he had concerns about Villa Francine because staff has not communicated with the residents to keep them abreast of what is going on.

He asked, are the citizens at Villa Francine aware of the demolition project?

Manager Patterson said he has been in communication with one of the citizens.

Mayor Kelley said that is his concern. He directed staff to send all the residents at Villa Francine information informing them what type of actions are being taken.

He further mentioned when we were working on getting NSP dollars staff did not communicate with the residents and that gave them the impression that we weren't doing anything. It was only after he called the City Manager and Community Development then they reached out to them.

He reiterated whenever we are in these situations with owners of properties staff needs to make sure they know what the city is doing so they don't get the impression that the city is not doing anything.

B. ACCOUNTS PAYABLE:

Dr. Ezekiel Orji, Finance Director for the City of Opa-locka came forward and informed the Commission of the finance reports provided to them as a part of the packet from the City Manager's Office.

He advised that the city has $500,000.00 set aside for reserves.

Commissioner Johnson asked, what does that mean?

Commissioner Johnson requested that staff state how much money the city has in the reserve fund, said Dr. Orji.

Commissioner Johnson said at the previous meeting staff stated the city had $565,000.00 in the reserve fund. What happened to the $65,000.00?

Dr. Orji stated that the full amount is there.

Commissioner Johnson asked, what is that amount?

Dr. Orji said $565,000.00.

17. OFFICIAL BOARD REPORTS:

18. CITY ATTORNEY'S REPORT:

Attorney Geller informed the Commission that he has been following up on the CSX Noise and he spoke to a number of people. He talked to the Florida Department of Transportation and there is a procedure to have quiet zones, however it's complicated. Some cities are grandfathered in and the federal laws have changed. The federal rail road administration now controls this. We can apply for a quiet zone but it will involve having to make significant upgrades to the crossing warning mechanisms at particular intersections.

He spoke to someone at CSX and they are willing to assist up move forward, but we need to know the exact intersections and if there's a time pattern when the whistles are being blown.

Attorney Geller reported that he met with the City Manager, Chief of Police, and staff and they have reached a tentative agreement with the PBA. The PBA is in the process of preparing some language and staff needs to go back to take a look at the final numbers to make sure they are in the budget.

He said he spoke to the Miami Dade County Aviation Directors Office regarding the airport noise issues and they want the specific timeframe for the noise.

He briefly mentioned that he received pre lawsuit notices from owners at Villa Francine that intend to sue the city because they purchased units and they believe the city is negligent. This is in the investigation stage, some of the lawsuits came in this week and it is not his belief that the city is negligent; however an investigation will be done in good faith.

He further mentioned there was a conversation regarding approving the change order for Sherbondy Village. For the record he did very extensive investigation trying to see if they can get competitive prices or other proposals before moving forward on the change order. Based on the investigation and the time that was expended this does appear to have been the right move for the city to move forward with the project.

He was informed by staff that they are having problems with the prior architectural/engineering contractors in receiving some of the information that the city has paid for. He intends on taking whatever action is necessary including filing a law suit if need be to get what the city is entitled to in order to move the project forward.

Commissioner Johnson said in regards to the ordinance that passed regarding schools, she knew about the private schools but she didn't want to go through the amendment. She would like the City Attorney to bring back legislation because the Department of Education looks at all of them centrally considered as having the same rights as public schools and she wants to make sure all of our legislation aims in that direction.

She directed the City Attorney to follow up on the senior discount program and bring it back to the commission.

She requested a report on the pursuit to vendors that has not rendered services. Before the city makes any more payments we need to make sure that everything that is due to us is in our possession.

Vice Mayor Taylor as it relates to the CSX noise since the police officers has three shifts perhaps they can keep a track of the train noise.

She further mentioned that the railroad crossing was repaired a while back when she was first elected because she called the CSX office in Jacksonville and she doesn't know why it is now the responsibility of the municipality to repair their railroad crossings.

Attorney Geller said not to repair it is a maintenance obligation that the City Manager and staff has been talking about.

In terms of the noise the issue is that they are required under the federal act to blow the whistle for safety. Under certain circumstances the federal railroad administration will permit the blowing of horns to be waved if there are signal upgrades.

Vice Mayor said she rides the Amtrak and when you get to Hollywood there is a significant difference in the maintenance.

Mayor Kelley said there have been a lot of concerns about the whistle blowing. You are correct some of the cities are grandfathered since the new legislation.

Attorney Geller said he will keep working on the issue until he can bring the commission back some numbers on the cost of upgrades.

Mayor Kelley said he would like to see the cost of upgrades and the comparison to what other cities are doing.

Attorney Geller said he will go to the PSC if they are not meeting the obligations that Mayor Kelley and Vice Mayor Taylor are speaking about.

19. CITY CLERK'S REPORT:

Clerk Irby reminded the Commission to turn in their financial disclosure forms by July 1, 2010.

Commissioner Johnson asked did she understand her to once say to qualify to run for office you have to resign two months prior?

Clerk Irby said the resign to run law states if you are going to run for another position then you need to resign 10 days prior to the qualifying period.

Commissioner Johnson asked, is that law the same for the state?

Clerk Irby replied, yes.

20. MAYOR/COMMISSION REPORT:

Commissioner Johnson thanked the Mayor and citizens for their support during her hour of bereavement.

She reported that she participated in Blacks in Government and was presented with a proclamation from Commissioner Barbara Jordan. She also attended the stamp unveiling at Booker T. Washington.

Commissioner Johnson said she would like to ask her colleagues for the agreement when she meets with the County Staff to also inquire about foreclosure.

She further mentioned that her organization is applying for grants, and if awarded they will compliment the Community Empowerment Team.

Mayor Kelley announced his attendance at the Magnolia North Crime Watch Meeting to hear the citizens concerns.

He encouraged everyone to keep in mind that it is the summer and a lot of kids are out of school. He commended the Parks & Recreation Department on the good job of the summer program.

Mayor Kelley invited everyone to attend the Board & Committee Banquet on Friday, June 30, 2010 @ 7:30 p.m. on the 2ND Floor at Town Center One.

He further commended the City Clerk and her staff for their hard work and recognized those that serve on various and boards and committees for their service.

Mayor Kelley announced the Ribbon Cutting Ceremony for Segal Park will take place on Thursday, June 23, 2010 @ 11:00 a.m.

21. OFFICIAL BOARD APPOINTMENTS:

22. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 10:20 p.m.

MAYOR

ATTEST:

CITY CLERK

Roy Rogers
Chair
Robert J. Sniffen
Vice Chair
Cheryl Forchilli
I. Martin Ford
Michael D. Joblove
Frank Kruppenbacher
Jean M. Larsen
Albert P. Massey, III
Susan Horovitz Maurer

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Philip Claypool
Executive Director

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June 17, 2010

RECEIVED
CITY CLERK
2010 JUN 25 PM 1:00

The Honorable Rose Tydus
City Commissioner
City of Opa-locka
City Hall
777 Sharazad Boulevard
Opa-locka, Florida 33054

Re: Your fax/letter dated June 15, 2010

Dear Commissioner Tydus:

Philip Claypool, Executive Director and General Counsel of the Florida Commission on Ethics, has requested that I respond to your above-referenced inquiry.

The Commission on Ethics has jurisdiction on matters relating to, primarily, Part III, Chapter 112, Florida Statutes. Therefore, we are unable to respond as to whether the situation described in your letter might have been "unethical or illegal" under laws or standards located outside Part III, Chapter 112.

Under Part III, Chapter 112, statutes which can be addressed, to some extent, regarding your inquiry are Sections 112.313(3), 112.313(7), 112.3148, and 112.3143(3)(a), Florida Statutes.

The facts presented in your inquiry do not implicate Section 112.313(3) because they do not indicate that the City purchased, rented, or leased anything from you or from a business connected to you, your spouse, or your child as set forth in the statute. Also, the facts do not indicate that you

or any business of yours rented, leased, or sold anything to the City.

Regarding Section 112.313(7), assuming, for the sake of argument, that you met the elements necessary for a prima facie violation of the statute, it appears that the exemption of Section 112.313(12)(i), Florida Statutes, would shield you from an actual violation. The exemption provides, relative to possible conflicts rooted in a business's doing of business with a public entity, that ". . . no person shall be held in violation of subsection . . . (7) if . . . the public officer . . . purchases in a private capacity goods or services, at a price and upon terms available to similarly situated members of the general public, from a business entity which is doing business with his or her agency."

Concerning Section 112.3148, it does not appear that the plants/services from the nursery were a gift to you. Rather, you state that you paid the nursery. Section 112.312(12)(a), Florida Statutes, defines "gift" to mean " . . . that . . . for which equal or greater consideration is not given within 90 days . . . ."

As to Section 112.3143(3)(a), it does not appear that you will be presented with a voting conflict of interest based on your purchase of plants from the nursery, should any votes/measures of the City Commission regarding the nursery come up. Such a purchase would not have made the nursery "a principal by whom you were retained"; and such a purchase would not have created any other relationship between you and the nursery as enumerated in Section 112.3143(3)(a).

In sum, as set forth above, it does not appear that the situation presented in your inquiry is conflicting for you under the ethics statutes cited above.[1]

If I have misunderstood any facts of your inquiry, if material facts other than those listed in your inquiry were not presented and need to be supplemented, or if you have any questions, please telephone me. However, I expect to be out of

[1] To view the statutes, go to www.ethics.state.fl.us, go to Ethics Laws, go to Part III, Chapter 112, and go to the particular statute.

the office until June 22.

Sincerely,

C. Christopher Anderson, III
Chief Assistant General Counsel